

Court No. - 3

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan, S.C.

Hon'ble Amitava Lala, J.

Hon'ble Pradeep Kumar Singh Baghel, J.

As prayed for, let it appear in the next cause list, showing the name of Mr. Pankaj Shukla, as learned counsel for the respondents.

Order Date :- 24.11.2011

pks

Court No. - 3

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan, S.C.

Hon'ble Amitava Lala, J.

Hon'ble Pradeep Kumar Singh Baghel, J.

As last chance, respondents are granted time to file counter affidavit within a week. Rejoinder, if any will be filed within a week thereafter.

The matter will appear two weeks hence showing the name of Mr. Amrendra Nath Singh as counsel for respondent no. 1.

Order Date :- 20.12.2011

Sandeep

Court No. - 3

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan, S.C.

Hon'ble Amitava Lala, J.

Hon'ble Pradeep Kumar Singh Baghel, J.

Rejoinder filed today be kept with the record.

List on 16.2.2012 as for orders.

Order Date :- 10.1.2012

Gss

Court No. - 3

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan, S.C.

Hon'ble Amitava Lala, J.

Hon'ble Pradeep Kumar Singh Baghel, J.

As prayed for, let it appear on 27.02.2012 in the additional cause list as for orders.

Order Date :- 16.2.2012

pks

Court No. - 3

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan, S.C.

Hon'ble Amitava Lala, J.

Hon'ble Pradeep Kumar Singh Baghel, J.

Let it appear on 15.3.2012 for the purpose of obtaining instruction on the part of learned counsel appearing for Regulatory Commission and the same will be filed in any form before this Court.

Order Date :- 27.2.2012

Sandeep

Court No. - 3

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan, S.C.

Hon'ble Amitava Lala, J.

Hon'ble Pradeep Kumar Singh Baghel, J.

As jointly prayed for, let the matter appear on 28.2.2012.

Order Date :- 15.3.2012

Gss

Court No. - 3

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan, S.C.

Hon'ble Amitava Lala, J.

Hon'ble Pradeep Kumar Singh Baghel, J.

Let it appear in the next cause list.

Order Date :- 28.3.2012

Sandeep

Court No. - 3

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan, S.C.

Hon'ble Amitava Lala, J.

Hon'ble Pradeep Kumar Singh Baghel, J.

Learned counsel appearing for Regulatory Commission has not come forward with an affidavit in spite of giving last chance, but adjournment has been sought for.

Against this background, we are fixing the matter on 11.4.2012, on which date the order will be passed, irrespective of filing any affidavit, if any,

Order Date :- 4.4.2012

Gss

Court No. - 3

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan, S.C.

Hon'ble Amitava Lala, J.

Hon'ble Pradeep Kumar Singh Baghel, J.

None appeared to press the petition in spite of repeated calls. It seems that either the petitioner's purpose has been sub-served or he has lost his interest. Therefore, the writ petition seems to be infructuous by the passage of time. Hence, the writ petition is dismissed as infructuous, however, without imposing any cost.

Interim order, if any, stands vacated.

Order Date :- 18.4.2012

Gss

Court No. - 46

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan, A.N. Singh, Amrendra Nath Singh, H.P. Dubey, Pankaj Kumar Shukla, S.C.

Hon'ble Amar Saran, J.

Hon'ble Pradeep Kumar Singh Baghel, J.

Cause shown for recalling the order dated 18.4.2012 is sufficient.

Accordingly, the order dated 18.4.2012 is recalled and the case is restored to its original number.

List the case before appropriate Bench.

Order Date :- 4.1.2013

Gss

Court No. - 33

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan,A.N. Singh,Amrendra
Nath Singh,H.P. Dubey,Pankaj Kumar Shukla,S.C.

Hon'ble Sushil Harkauli,J.

Hon'ble Manoj Misra,J.

As prayed, list again in the next cause list showing the name of Sri Nipendra Misra,Advocate, also from the side of respondent.

Order Date :- 6.2.2013

G.S

(Manoj Misra,J)(Sushil Harkauli,J)

Court No. - 33

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Petitioner Counsel :- Bidhan Chandra Rai

Respondent Counsel :- W.H. Khan, A.N. Singh, Amrendra Nath Singh, H.P. Dubey, Pankaj Kumar Shukla, S.C.

Hon'ble Sushil Harkauli, J.

Hon'ble Manoj Misra, J.

The case is passed over on the illness-slip of Sri B.C. Rai, learned counsel for the petitioner.

Order Date :- 14.2.2013

Sunil Kr Tiwari

(Manoj Misra, J.) (Sushil Harkauli, J.)

Court No. - 39

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan, A.N. Singh, Amrendra Nath Singh, H.P. Dubey, Nripendra Misra, Pankaj Kumar Shukla, S.C.

Hon'ble Tarun Agarwala, J.

Hon'ble Rajan Roy, J.

The case is passed over on the illness slip of Shri Nripendra Mishra, learned counsel for the respondents.

Order Date :- 31.3.2014

sc

(Rajan Roy, J.) (Tarun Agarwala, J.)

Court No. - 37

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan, A.N. Singh, Amrendra Nath Singh, H.P. Dubey, Nripendra Misra, Pankaj Kumar Shukla, S.C.

Hon'ble Ashok Bhushan, J.

Hon'ble Mrs. Ranjana Pandya, J.

By this writ petition, the petitioner has prayed for mandamus declaring Clause 4.20 (i) of U.P. Electricity Supply Code, 2005. as arbitrary. The U.P. Electricity Supply Code, 2005 has been framed under Section 50 of Electricity Act, 2003.

In the Roster of the Bench presided over by Hon'ble the Chief Justice the "Cases where the vires of Central or State Legislation is challenged for order, admission and hearing including bunch cases." is included.

Learned counsel for the petitioner submits that the Supply Code is a Delegated Legislation and it is not the Central or the State Legislation.

Let this writ petition be placed before Hon'ble the Chief Justice for passing appropriate order as to whether this Bench has jurisdiction to take up the matter.

Order Date :- 7.4.2014

YK

Court No. - 34

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan,A.N. Singh,Amrendra Nath Singh,H.P. Dubey,Nripendra Misra,Pankaj Kumar Shukla,S.C.

Hon'ble Sudhir Agarwal,J.

Hon'ble Om Prakash-VII,J.

1. Request has been made on behalf of Sri B.C. Rai, learned counsel for petitioner, for adjournment. Sri Nripendra Mishra, Advocate, is present for respondents.
2. As prayed, list in the next cause list.

Order Date :- 30.10.2018

PS

Court No. - 34

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan, A.N. Singh, Amrendra Nath Singh, H.P. Dubey, Nripendra Misra, Pankaj Kumar Shukla, S.C.

Hon'ble Sudhir Agarwal, J.

Hon'ble Om Prakash-VII, J.

As requested by Sri B.C. Rai, learned counsel for petitioner, put up on 19.11.2018.

Order Date :- 13.11.2018

Siddhant Sahu

Court No. - 34

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels (Pvt.) Limited

Respondent :- U.P. Power Corporation Ltd. & Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan,A.N. Singh,Amrendra Nath Singh,H.P. Dubey,Nripendra Misra,Pankaj Kumar Shukla,S.C.

Hon'ble Sudhir Agarwal,J.

Hon'ble Om Prakash-VII,J.

As prayed by learned counsel for petitioner, list in the next cause list.

Order Date :- 19.11.2018

Manish Himwan

Court No. - 40

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels Pvt. Limited

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan,A.N. Singh,Amrendra Nath Singh,H.P. Dubey,Nripendra Misra,Pankaj Kumar Shukla,S.C.

Hon'ble Siddhartha Varma,J.

Hon'ble Ajit Singh,J.

List again on 18.10.2022 showing the name of Sri Narendra Kumar Tiwari as counsel for the respondent.

Sri B.C. Rai, learned counsel for the petitioner may inform Sri Narendra Kumar Tiwari about the date fixed in this case.

Order Date :- 20.9.2022

AU

Court No. - 40

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels Pvt. Limited

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan, A.N. Singh, Amrendra Nath Singh, H.P. Dubey, Narendra Kumar Tiwari, Nripendra Misra, Pankaj Kumar Shukla, S.C.

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

On the request of Sri N.K. Tiwari learned counsel for the respondents, list this case on 14.11.2022.

Order Date :- 18.10.2022

PK

(Ajit Singh, J.) (Siddhartha Varma, J.)

Court No. - 40

Case :- WRIT - C No. - 55784 of 2005

Petitioner :- M/S Prem Steels Pvt. Limited

Respondent :- U.P. Power Corporation Ltd. And Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- W.H. Khan, A.N. Singh, Amrendra Nath Singh, H.P. Dubey, Narendra Kumar Tiwari, Nripendra Misra, Pankaj Kumar Shukla, S.C.

Hon'ble Siddhartha Varma, J.

Hon'ble Ajit Singh, J.

Heard Sri B.C. Rai learned counsel for the petitioner; Sri Bhanu Pratap Singh holding brief of Sri Ajay Singh, learned counsel for the respondent no. 4; Sri Ugrasen Kumar Pandey holding brief of Sri Nripendra Mishra, learned counsel for the respondent nos. 1, 2 and 3 and the learned Standing Counsel.

Grievance of the petitioner is that though the interest on the security which was deposited with the distribution licensee had to fetch an interest more than or equivalent rate of interest paid by the Bank and as per Section 47(4) of the Electricity Act, 2003, the interest was being paid at a much lesser rate by the impugned order.

Learned counsel for the petitioner states that the counter affidavit which was filed by the respondents no. 1, 2 and 3 had stated in paragraph no. 14 that since there was yet no notification issued by the State Commission, the interest was being granted at the rate at which it was being granted in the

year 2003 and, therefore, the rate of interest as was provided by the Electricity Supply Code, 2002 was being given.

Learned counsel for the petitioner states that after the counter affidavit was filed in the year 2005 there has been an amendment on 14.6.2008 by which the clause (i) has been added to the clause 4.20 and the interest had to be paid at the Bank rate as had been notified by the Reserve Bank of India.

Since the learned counsel for the petitioner has relied upon the clause 4.20(i) of the Electricity Supply Code, 2005, and the explanation appended thereto, the same are being reproduced here as under:

"4.20 (i.) The Licensee shall pay interest on security deposit to the consumers at bank rate as on 1st April of applicable financial year by way of credit in the bill of the consumer in the first months of April, or May or June as per the applicable billing cycle. However, no interest shall be payable if the deposit is not made by way of cash, cheque or bank draft. The interest rates are subject to change as per the tariff orders of Commission from time to time.

[Explanation:- Bank Rate shall mean the rate as notified by the Reserve Bank of India]"

Learned counsel for the respondents no. 1, 2 and 3, however, submits that since at the time when the deposit was made there was no provision to give the interest at bank rate, the interest prayed for by the petitioner could not be given at the Bank rate.

Having heard the learned counsel for the parties, the Court is of the view that the petitioner ought to be given the interest at the bank rate with effect from 10.6.2003 when the provision for paying interest was enacted as per Section 47 (4) of the Electricity Act, 2003.

A direction, therefore, is being issued to the respondents no. 2 and 3 to pay to the petitioner the interest at the bank rates which had been notified by the Reserve Bank of India from time to time with effect from 10.6.2003 i.e the date when the provision for paying interest was incorporated in the Electricity Act, 2003.

With these observations, the writ petition stands allowed.

Order Date :- 2.12.2022

PK

(Ajit Singh,J.) (Siddhartha Varma,J.)